

Writ Petition No 4675-2014

Muhammad Asif Miraj

The State etc.

1. 21.02.2014 Rana Muhammad Adeel, Advocate for the petitioner.

Through the instant writ petition under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 the petitioner has assailed the vires of order dated 04.12.2013 passed by the learned Additional Sessions Judge, Lahore, whereby he dismissed the revision petition filed by the petitioner against the order dated 20.09.2013 passed by the learned Judicial Magistrate Section-30, Lahore dismissing the application of the petitioner under section 540 Cr.P.C. seeking summoning of (1) Khursheed Ali, ASI (2) Muhammad Arshad and Muhammad Muzammal prosecution witnesses for re-examination.

2. I have heard the learned counsel for the petitioner and have also perused the record.

3. It reveals from the record that Khursheed Ali (PW-1), Muhammad Arshad (PW-2) and Muhammad Muzammal (PW-3) the prosecution witnesses were examined on 14.05.2012 and 20.06.2012 respectively. All the three prosecution witnesses were cross-examined on

02.05.2013 by the learned defence counsel. The petitioner/accused was represented by a pleader/counsel. It does not appear that further time was asked for by the learned defence counsel or the accused/petitioner by stating that counsel was not authorized by him to cross-examine the above stated prosecution witnesses. It appears to be clear enough that the learned defence counsel on 02.05.2013 cross-examined the witnesses. From the evidence of PW-1 to PW-3 it's revealed that PW-1 shifted the injured to hospital and also witnessed the occurrence whereas PW-2 and PW-3 were the injured witnesses and none of them were the recovery witnesses. The learned counsel has failed to establish that PW-1 to PW-3 were the recovery witnesses. The order sheet placed on record shows that the witnesses were examined on 14.05.2012 and 20.06.2012 and were subjected to lengthy cross-examination. It is established law that neither the defence nor the prosecution can be allowed to fill the lacuna by re-summoning of witnesses under section 540 Cr.P.C. If this practice is allowed none of the trial would ever come to an end and this practice would amount to opening floodgates. The record shows that the accused had already been given full and fair opportunities to cross-examine upon the said witnesses and if learned defence counsel had failed to put some questions to the said

witnesses, the prosecution witnesses cannot be punished for his inexperience or failure. In this regard reliance is placed on the case of **Rasheed Ahmad v. Ibrahim and another** (1996 P.Cr.L.J 143). I have, however, heard arguments on the points and am satisfied that there has been no ground for acceptance of this petition as there has been no illegality or irregularity in the orders of the learned courts below.

4. Consequently, the instant petition having no merits is hereby **dismissed in limine.**

(AALIA NEELUM)
JUDGE

Approved for reporting.